

Raj Bahadur Singh v. Managing Director, Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 15 December 2020 · WRIT - C No. - 19892 of 2020 · **Writ dismissed; petitioner relegated to Clause 6.5 / CGRF.**

HEADNOTE

A writ to quash a 26 September 2020 communication of Dakshinanchal Vidyut Vitran Nigam Ltd. was dismissed. The Division Bench held that the petitioner should approach the Consumer Grievance Redressal Forum under the UPERC (CGRF & Electricity Ombudsman) Regulations, 2007 to avail the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and refused to entertain the petition because that alternative remedy was available.

FACTUAL SUMMARY

Raj Bahadur Singh petitioned the Allahabad High Court to quash a communication dated 26 September 2020 issued by respondent no. 2 of Dakshinanchal Vidyut Vitran Nigam Ltd. On 1 December 2020 none appeared for the petitioner; the Division Bench listed the matter as fresh for 15 December 2020. On the adjourned date the respondents were represented. The extract does not describe the contents of the 26 September 2020 communication or the underlying supply or billing controversy beyond the prayer to quash it.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternate remedy for grievance against licensee communication

HOLDING

Where the petitioner seeks quashing of a licensee communication, the writ court will not entertain the petition if the Consumer Grievance Redressal Forum under the UPERC (CGRF & Electricity Ombudsman) Regulations, 2007 is available to avail the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the petition is dismissed on that alternative remedy. ¶ 1

FLAG Order treats Clause 6.5 as a CGRF remedy under the 2007 Regulations.

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ seeking quashing of a 26.9.2020 DVVNL communication dismissed; petitioner directed to CGRF under the 2007 Regulations to avail Clause 6.5 of the Supply Code. ¶ 1

clause-6.5-statutory-remedy Clause 6.5, invoked through the CGRF constituted under the 2007 Regulations, was treated as the statutory forum for the grievance; High Court declined merits consideration. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE COMMUNICATION DATED 26.9.2020

Petition dismissed solely on alternative remedy; the communication was not examined on merits. ¶ 1